ATTORNEY OR PARTY WITHOUT ATTORNEY
STATE BAR NUMBER:
NAME: Brendan Ngwa Nforbi
FIRM NAME:
STREET ADDRESS: 1455 Cat Tail Drive
CITY: Stockton
STATE: CA
ZIP CODE: 95204
TELEPHONE NO.: (209) 801-4442
FAX NO.:
EMAIL ADDRESS: bnn.cdl@gmail.com
ATTORNEY FOR (*name*): Plaintiff, In Propria Persona

*FOR COURT USE ONLY*

**SUPERIOR COURT OF CALIFORNIA, COUNTY OF** San Joaquin
STREET ADDRESS: 180 E Weber Avenue
MAILING ADDRESS: 180 E Weber Avenue
CITY AND ZIP CODE: Stockton, CA 95202
BRANCH NAME: Stockton Courthouse

CASE NAME: Brendan Ngwa Nforbi v. Swift Transportation Co. of Arizona LLC

## CIVIL CASE COVER SHEET

☐ **Unlimited** (Amount demanded exceeds $35,000)
☐ **Limited** (Amount demanded is $35,000 or less)

## Complex Case Designation

☐ Counter ☐ Joinder

Filed with first appearance by defendant (Cal. Rules of Court, rule 3.402)

CASE NUMBER:

JUDGE:
DEPT.:

*Items 1–6 below must be completed (see instructions on page 2 and examples on page 3).*

1. Check **one** box below for the case type that best describes this case:

**Auto Tort**
- ☐ Auto (22)
- ☐ Uninsured motorist (46)

**Asbestos**
- ☐ Asbestos (04)

**Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort**
- ☐ Product liability (24)
- ☐ Medical malpractice (45)
- ☐ Other PI/PD/WD (23)

**Non-PI/PD/WD (Other) Tort**
- ☐ Business tort/Unfair business practice (07)
- ☐ Civil rights (08)
- ☐ Defamation (13)
- ☐ Fraud (16)
- ☐ Intellectual property (19)
- ☐ Professional negligence (25)
- ☐ Other non-PI/PD/WD tort (35)

**Employment**
- ☐ Wrongful termination (36)
- ☐ Other employment (15)

**Contract**
- ☐ Breach of contract/warranty (06)
- ☐ Song-Beverly Act: Motor Vehicle Lemon Law (49)
- ☐ Rule 3.740 collections (09)
- ☐ Other collections (09)
- ☐ Insurance coverage (18)
- ☐ Other contract (37)

**Real Property**
- ☐ Eminent domain/Inverse condemnation (14)
- ☐ Wrongful eviction (33)
- ☐ Other real property (26)

**Unlawful Detainer**
- ☐ Commercial (31)
- ☐ Residential (32)
- ☐ Drugs (38)

**Judicial Review**
- ☐ Asset forfeiture (05)
- ☐ Petition re arbitration award (11)
- ☐ Writ of mandate (02)
- ☐ Other judicial review (39)

**Employment Development Department (EDD)**
- ☐ EDD decision review (48)

**Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)**
- ☐ Antitrust/Trade regulation (03)
- ☐ Construction defect (10)
- ☐ Mass tort (40)
- ☐ Securities litigation (28)
- ☐ Environmental/Toxic tort (30)
- ☐ Comprehensive groundwater adjudication (47)
- ☐ Insurance coverage claims arising from the above listed provisionally complex case types (41)

**Enforcement of Judgment**
- ☐ Enforcement of judgment (20)

**Miscellaneous Civil Complaint**
- ☐ RICO (27)
- ☐ Other complaint *(not specified above)* (42)

**Miscellaneous Civil Petition**
- ☐ Partnership and corporate governance (21)
- ☐ Other petition *(not specified above)* (43)

2. Is this case complex under rule 3.400 of the California Rules of Court? ☐ Yes ☐ No

   If the case is complex, mark the factors requiring exceptional judicial management:

   a. ☐ Large number of separately represented parties
   b. ☐ Extensive motion practice raising difficult or novel issues that will be time-consuming to resolve
   c. ☐ Substantial amount of documentary evidence
   d. ☐ Large number of witnesses
   e. ☐ Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court
   f. ☐ Substantial postjudgment judicial supervision

3. Remedies sought *(check all that apply):*

   a. ☐ monetary
   b. ☐ nonmonetary; declaratory or injunctive relief
   c. ☐ punitive

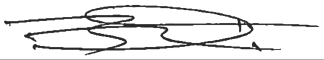
4. Number of causes of action *(specify):* 4

5. Is this case a class action suit? ☐ Yes ☐ No

6. If there are any known related cases, file and serve a notice of related case. *(You may use form CM-015.)*

Date: September 8, 2026

Brendan Ngwa Nforbi
Type or print name


Signature of party or attorney for party

**NOTICE**

- Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (except small claims cases or cases filed under the Probate Code, Family Code, or Welfare and Institutions Code). (Cal. Rules of Court, rule 3.220.) Failure to file may result in sanctions.
- File this cover sheet in addition to any cover sheet required by local court rule.
- If this case is complex under rule 3.400 et seq. of the California Rules of Court, or a collections case under rule 3.740, you must serve a copy of this cover sheet on all other parties to the action or proceeding. (Cal. Rules of Court, rule 3.220.)
- Unless this is a collections case under rule 3.740 or a complex case, this cover sheet will be used for statistical purposes only.

**INSTRUCTIONS ON HOW TO COMPLETE THE COVER SHEET**

**To Plaintiffs and Others Filing First Papers.** If you are filing a first paper (for example, a complaint) in a civil case, you **must** complete and file, along with your first paper, the Civil Case Cover Sheet contained on pages 1 and 2. This information will be used to compile statistics about the types and numbers of cases filed. You must complete items 1 through 6 on the sheet. In item 1, you must check **one** box for the case type that best describes the case. If the case fits both a general and a more specific type of case listed in item 1, check the more specific one. If the case has multiple causes of action, check the box that best indicates the **primary** cause of action. To assist you in completing the sheet, examples of the cases that belong under each case type in item 1 are provided on page 3 of this form. A cover sheet must be filed only with your initial paper. Failure to file a cover sheet with the first paper filed in a civil case may subject a party, its counsel, or both to sanctions under rules 2.30 and 3.220 of the California Rules of Court.

**To Parties in Rule 3.740 Collections Cases.** A "collections case" under rule 3.740 of the California Rules of Court is defined as an action for recovery of money owed in a sum stated to be certain that is not more than $35,000, exclusive of interest and attorney's fees, arising from a transaction in which property, services, or money was acquired on credit. A collections case does not include an action seeking the following: (1) tort damages, (2) punitive damages, (3) recovery of real property, (4) recovery of personal property, or (5) a prejudgment writ of attachment. The identification of a case as a rule 3.740 collections case on this form means that it will be exempt from the general time-for-service requirements and case management rules, unless a defendant files a responsive pleading. A rule 3.740 collections case will be subject to the requirements for service and obtaining a judgment in rule 3.740.

**To Parties in Complex Cases.** In complex cases only, parties must also use the Civil Case Cover Sheet to designate whether the case is complex. If a plaintiff believes the case is complex under rule 3.400 of the California Rules of Court, this must be indicated by completing the appropriate boxes in items 1 and 2. If a plaintiff designates a case as complex, the cover sheet must be served with the complaint on all parties to the action. A defendant may file and serve no later than the time of its first appearance a joinder in the plaintiff's designation, a counter-designation that the case is not complex, or, if the plaintiff has made no designation, a designation that the case is complex.

**SEE PAGE 3 FOR INFORMATION PURPOSES ONLY.**

## CASE TYPES AND EXAMPLES

The list below provides explanations and examples for the case type checkboxes listed in item 1 on this form. The lists of examples below are not meant to be exhaustive, and some case types may have causes of action not listed here.

**Auto Tort**
- Auto (22)–Personal Injury/Property Damage/Wrongful Death
- Uninsured Motorist *(if the case involves an uninsured motorist claim subject to arbitration, check this item instead of Auto)* (46)

**Asbestos**
- Asbestos (04)
  - Asbestos Property Damage
  - Asbestos Personal Injury/Wrongful Death

**Other PI/PD/WD (Personal Injury/Property Damage/Wrongful Death) Tort**
- Product Liability *(not asbestos or environmental/toxic tort)* (24)
- Medical Malpractice (45)
  - Medical Malpractice–Physicians & Surgeons
  - Other Professional Health Care Malpractice
- Other PI/PD/WD (23)
  - Premises Liability (e.g., slip and fall)
  - Intentional Bodily Injury/PD/WD (e.g., assault, vandalism)
  - Intentional Infliction of Emotional Distress
  - Negligent Infliction of Emotional Distress
  - Other PI/PD/WD

**Non-PI/PD/WD (Other) Tort**
- Business Tort/Unfair Business Practice (07)
- Civil Rights (e.g., discrimination, false arrest) *(not civil harassment)* (08)
- Defamation (e.g., slander, libel) (13)
- Fraud *(other than contract)* (16)
- Intellectual Property (19)
- Professional Negligence (25)
  - Legal Malpractice
  - Other Professional Malpractice *(not medical)*
- Other Non-PI/PD/WD Tort (35)

**Employment**
- Wrongful Termination (36)
- Other Employment (15)

**Contract**
- Breach of Contract/Warranty (06)
  - Breach of Rental/Lease Contract *(not unlawful detainer or wrongful eviction)*
  - Contract/Warranty Breach–Seller Plaintiff *(not fraud)*
  - Negligent Breach of Contract/Warranty
  - Other Breach of Contract/Warranty
- Song-Beverly Act: Motor Vehicle Lemon Law *(check this item if the case involves a Song-Beverly Act claim regarding a motor vehicle)* (49)
- Rule 3.740 Collections *(as defined in Cal. Rules of Court, rule 3.740(a))* (09)
- Other Collections (e.g., money owed, open book accounts, promissory note) (09)
- Insurance Coverage *(not provisionally complex)* (18)
  - Auto Subrogation
  - Other Coverage
- Other Contract (37)
  - Contractual Fraud
  - Other Contract Dispute

**Real Property**
- Eminent Domain/Inverse Condemnation (14)
- Wrongful Eviction (33)
- Other Real Property (e.g., quiet title) (26)
  - Writ of Possession of Real Property
  - Mortgage Foreclosure
  - Quiet Title
  - Other Real Property *(not unlawful detainer)*

**Unlawful Detainer**
- Commercial (31)
- Residential (32)
- Drugs *(if the case involves illegal drugs, check this item; otherwise, choose Commercial or Residential)* (38)

**Judicial Review**
- Asset Forfeiture (05)
- Petition re Arbitration Award (11)
- Writ of Mandate (02)
  - Writ–Administrative Mandamus
  - Writ–Mandamus on Limited Court Case Matter
  - Writ–Other Limited Court Case Review
- Other Judicial Review (39)
  - Review of Health Officer Order
  - Notice of Appeal–Labor Commissioner Appeals

**Employment Development Department (EDD)**
- EDD Decision Review *(if the case involves an Employment Development Department decision, check this item instead of wrongful termination or other employment)* (48)

**Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 3.400–3.404)**
- Antitrust/Trade Regulation (03)
- Construction Defect (10)
- Mass Tort (40)
- Securities Litigation (28)
- Environmental/Toxic Tort (30)
- Comprehensive Groundwater Adjudication (47)
- Insurance Coverage Claims *(arising from provisionally complex case type listed above)* (41)

**Enforcement of Judgment**
- Enforcement of Judgment (20)
  - Abstract of Judgment (Out of County)
  - Confession of Judgment *(non-domestic relations)*
  - Sister-State Judgment
  - Administrative Agency Award
  - Petition/Certification of Entry of Judgment on Unpaid Taxes
  - Other Enforcement of Judgment Case

**Miscellaneous Civil Complaint**
- RICO (27)
- Other Complaint *(not specified above)* (42)
  - Declaratory Relief Only
  - Injunctive Relief Only *(non-harassment)*
  - Mechanic's Lien
  - Other Commercial Complaint Case *(non-tort/non-complex)*
  - Other Civil Complaint *(non-tort/non-complex)*

**Miscellaneous Civil Petition**
- Partnership and Corporate Governance (21)
- Other Petition *(not specified above)* (43)
  - Civil Harassment
  - Workplace Violence
  - Elder/Dependent Adult Abuse
  - Election Contest
  - Petition for Name Change
  - Petition for Relief From Government Claim Requirement
  - Other Civil Petition

# FW-001 Request to Waive Court Fees

**CONFIDENTIAL**

*Clerk stamps date here when form is filed.*

If you are getting public benefits, are a low-income person, or do not have enough income to pay for your household's basic needs and your court fees, you may use this form to ask the court to waive your court fees. The court may order you to answer questions about your finances. If the court waives the fees, you may still have to pay later if:

- You cannot give the court proof of your eligibility,
- Your financial situation improves during this case, or
- You settle your civil case for **$10,000** or more. The trial court that waives your fees will have a lien on any such settlement in the amount of the waived fees and costs. The court may also charge you any collection costs.

*Fill in court name and street address:*

**Superior Court of California, County of**

San Joaquin
180 E Weber Avenue
Stockton, CA 95202

*Fill in case number and name:*

**Case Number:**

**Case Name:**
Brendan Ngwa Nforbi
v. Swift Transportation Co. of Arizona LLC

**1 Your Information** *(person asking the court to waive the fees):*

Name: Brendan Ngwa Nforbi
Street or mailing address: 1455 Cat Tail Drive
City: Stockton State: CA Zip: 95204
Phone: (209) 801-4442

**2 Your Job,** if you have one *(job title):* _____
Name of employer: _____
Employer's address: _____

**3 Your Lawyer,** if you have one *(name, firm or affiliation, address, phone number, and State Bar number):*

_____

_____

a. The lawyer has agreed to advance all or a portion of your fees or costs *(check one):* Yes ☐ No ☐

b. *(If yes, your lawyer must sign here)* Lawyer's signature: _____
*If your lawyer is not providing legal-aid type services based on your low income, you may have to go to a hearing to explain why you are asking the court to waive the fees.*

**4 What court's fees or costs are you asking to be waived?**

☐ Superior Court (See *Information Sheet on Waiver of Superior Court Fees and Costs* (form FW-001-INFO).)
☐ Supreme Court, Court of Appeal, or Appellate Division of Superior Court (See *Information Sheet on Waiver of Appellate Court Fees* (form APP-015/FW-015-INFO).)

**5 Why are you asking the court to waive your court fees?**

a. ☐ I receive *(check all that apply; see form FW-001-INFO for definitions):*
☐ Food Stamps ☐ Supp. Sec. Inc. ☐ SSP ☐ Medi-Cal ☐ County Relief/Gen. Assist. ☐ IHSS
☐ CalWORKS or Tribal TANF ☐ CAPI ☐ WIC ☐ Unemployment

b. ☐ My gross monthly household income (before deductions for taxes) is less than the amount listed below. *(If you check 5b, you must fill out 7, 8, and 9 on page 2 of this form.)*

| Family Size | Family Income | Family Size | Family Income | Family Size | Family Income |
|---|---|---|---|---|---|
| 1 | $2,660.00 | 3 | $4,553.33 | 5 | $6,446.67 |
| 2 | $3,606.67 | 4 | $5,500.00 | 6 | $7,393.33 |

*If more than 6 people at home, add $946.67 for each extra person.*

c. ☐ I do not have enough income to pay for my household's basic needs *and* the court fees. I ask the court to: *(check one and you **must** fill out page 2):*
☐ waive all court fees and costs ☐ waive some of the court fees ☐ let me make payments over time

**6** ☐ Check here if you asked the court to waive your court fees for this case in the last six months.
(*If your previous request is reasonably available, please attach it to this form and check here*): ☐

**I declare under penalty of perjury under the laws of the State of California that the information I have provided on this form and all attachments is true and correct.**

September 8, 2026

Brendan Ngwa Nforbi
*Print your name here*

*Sign here*

Your name: Brendan Ngwa Nforbi

**Case Number:**

*If you checked 5a on page 1, do not fill out below. If you checked 5b, fill out questions 7, 8, and 9 only. If you checked 5c, you **must** fill out this entire page. If you need more space, attach form MC-025 or attach a sheet of paper and write Financial Information and your name and case number at the top.*

**7** ☐ Check here if your income changes a lot from month to month. If it does, complete the form based on your average income for the past 12 months.

## 8 Your Gross Monthly Income

a. List the source and amount of ***any*** income you get each month, including: wages or other income from work before deductions, spousal/child support, retirement, social security, disability, unemployment, military basic allowance for quarters (BAQ), veterans payments, dividends, interest, trust income, annuities, net business or rental income, reimbursement for job-related expenses, gambling or lottery winnings, etc.

(1) N/A $0
(2) N/A $0
(3) N/A $0
(4) N/A $0

b. **Your total monthly income**: $0

## 9 Household Income

a. List the income of all other persons living in your home who depend in whole or in part on you for support, or on whom you depend in whole or in part for support.

| | Name | Age | Relationship | Gross Monthly Income |
|---|---|---|---|---|
| (1) | N/A | N/A | N/A | $0 |
| (2) | | | | $ |
| (3) | | | | $ |
| (4) | | | | $ |

b. **Total monthly income of persons above:** $0

**Total monthly income *and* household income** *(8b plus 9b):* $0

To list any other facts you want the court to know, such as unusual medical expenses, etc., attach form MC-025 or attach a sheet of paper and write Financial Information and your name and case number at the top.

*Check here if you attach another page.* ☐

***Important!* If your financial situation or ability to pay court fees improves, you must notify the court within five days on form FW-010.**

## 10 Your Money and Property

a. Cash $

b. All financial accounts *(List bank name and amount):*
(1) $
(2) $
(3) $

c. Cars, boats, and other vehicles

| | Make / Year | Fair Market Value | How Much You Still Owe |
|---|---|---|---|
| (1) | | $ | $ |
| (2) | | $ | $ |
| (3) | | $ | $ |

d. Real estate

| | Address | Fair Market Value | How Much You Still Owe |
|---|---|---|---|
| (1) | | $ | $ |
| (2) | | $ | $ |

e. Other personal property (jewelry, furniture, furs, stocks, bonds, etc.):

| | Describe | Fair Market Value | How Much You Still Owe |
|---|---|---|---|
| (1) | | $ | $ |
| (2) | | $ | $ |

## 11 Your Monthly Deductions and Expenses

a. List any payroll deductions and the monthly amount below:
(1) $
(2) $
(3) $
(4) $

b. Rent or house payment & maintenance $
c. Food and household supplies $
d. Utilities and telephone $
e. Clothing $
f. Laundry and cleaning $
g. Medical and dental expenses $
h. Insurance (life, health, accident, etc.) $
i. School, child care $
j. Child, spousal support (another marriage) $
k. Transportation, gas, auto repair and insurance $
*l.* Installment payments *(list each below)*:
Paid to:
(1) $
(2) $
(3) $
m. Wages/earnings withheld by court order $
n. Any other monthly expenses *(list each below)*.

| | Paid to: | How Much? |
|---|---|---|
| (1) | | $ |
| (2) | | $ |
| (3) | | $ |

**Total monthly expenses** *(add 11a –11n above):* $



**For your protection and privacy, please press the Clear button after you have printed the form.**

# FW-003 Order on Court Fee Waiver (Superior Court)

*Clerk stamps date here when form is filed.*

**1 Person who asked the court to waive court fees:**

Name: Brendan Ngwa Nforbi

Street or mailing address: 1455 Cat Tail Drive

City: Stockton State: CA Zip: 95204

**2 Lawyer, if person in 1 has one** *(name, firm name, address, phone number, e-mail, and State Bar number):*

*Fill in court name and street address:*

**Superior Court of California, County of**

San Joaquin
180 E Weber Avenue
Stockton, CA 95202

*Fill in case number and name:*

**Case Number:**

**Case Name:**
Brendan Ngwa Nforbi
v. Swift Transportation Co. of Arizona LLC

**3** A request to waive court fees was filed on *(date):*

☐ The court made a previous fee waiver order in this case on *(date):*

***Read this form carefully. All checked boxes þ are court orders.***

**Notice:** The court may order you to answer questions about your finances and later order you to pay back the waived fees. If this happens and you do not pay, the court can make you pay the fees and also charge you collection fees. If there is a change in your financial circumstances during this case that increases your ability to pay fees and costs, you must notify the trial court within five days. (Use form FW-010.) If you win your case, the trial court may order the other side to pay the fees. If you settle your civil case for **$10,000** or more, the trial court will have a lien on the settlement in the amount of the waived fees. The trial court may not dismiss the case until the lien is paid.

**4** After reviewing your: ☐ *Request to Waive Court Fees* ☐ *Request to Waive Additional Court Fees* **the court makes the following orders:**

a. ☐ The court **grant**s your request, as follows:

(1) ☐ **Fee Waiver.** The court grants your request and waives your court fees and costs listed below. *(Cal. Rules of Court, rules 3.55 and 8.818.)* You do not have to pay the court fees for the following:

- Filing papers in superior court
- Making copies and certifying copies
- Sheriff's fee to give notice
- Court fee for phone hearing
- Giving notice and certificates
- Sending papers to another court department
- Reporter's fee for attendance at hearing or trial, if the court is not electronically recording the proceeding and you request that the court provide an official reporter
- Assessment for court investigations under Probate Code section 1513, 1826, or 1851
- Preparing, certifying, copying, and sending the clerk's transcript on appeal
- Holding in trust the deposit for a reporter's transcript on appeal under rule 8.130 or 8.834
- Making a transcript or copy of an official electronic recording under rule 8.835

(2) ☐ **Additional Fee Waiver.** The court grants your request and waives your additional superior court fees and costs that are checked below. *(Cal. Rules of Court, rule 3.56.)* You do not have to pay for the checked items.

☐ Jury fees and expenses
☐ Fees for court-appointed experts
☐ Other *(specify):*
☐ Fees for a peace officer to testify in court
☐ Court-appointed interpreter fees for a witness

b. ☐ The court **denies** your fee waiver request because:

**Warning!** If you miss the deadline below, the court cannot process your request for hearing or the court papers you filed with your original request. If the papers were a notice of appeal, the appeal may be dismissed.

(1) Your request is incomplete. You have **10 days** after the clerk gives notice of this Order (see date of service ☐ on next page) to:

- Pay your fees and costs, or
- File a new revised request that includes the incomplete items listed:
  ☐ Below ☐ On Attachment 4b(1)

(2) ☐ The information you provided on the request shows that you are not eligible for the fee waiver you requested for the reasons stated: ☐ Below ☐ On Attachment 4b(2)

The court has enclosed a blank *Request for Hearing About Court Fee Waiver Order (Superior Court)* (form FW-006).You have **10 days** after the clerk gives notice of this order (see date of service below) to:

- Pay your fees and costs in full or the amount listed in c below, or
- Ask for a hearing in order to show the court more information. *(Use form FW-006 to request hearing.)*

c. (1) ☐ The court needs more information to decide whether to grant your request. You must go to court on the date on page 3. The hearing will be about the questions regarding your eligibility that are stated:
☐ Below ☐ On Attachment 4c(1)

(2) ☐ Bring the items of proof to support your request, if reasonably available, that are listed:
☐ Below ☐ On Attachment 4c(2)

**This is a Court Order.**

Your name: Brendan Ngwa Nforbi

**Case Number:**

Name and address of court if different from above:

**Hearing Date**

Date: _____ Time: _____

Dept.: _____ Room: _____

**Warning!** If item c(1) is checked, and you do not go to court on your hearing date, the judge will deny your request to waive court fees, and you will have 10 days to pay your fees. If you miss that deadline, the court cannot process the court papers you filed with your request. If the papers were a notice of appeal, the appeal may be dismissed.

Date: _____

_____

*Signature of (check one):* ☐ *Judicial Officer* ☐ *Clerk, Deputy*

## Request for Accommodations



Assistive listening systems, computer-assisted real-time captioning, or sign language interpreter services are available if you ask at least five days before the hearing. Contact the clerk's office for *Request for Accommodations by Persons With Disabilities and Response* (form MC-410). (Civ. Code, § 54.8.)

## Clerk's Certificate of Service

I certify that I am not involved in this case and *(check one):*

☐ I handed a copy of this Order to the party and attorney, if any, listed in (1) and (2), at the court, on the date below.

☐ This order was mailed first class, postage paid, to the party and attorney, if any, at the addresses listed in (1) and (2), from *(city):* _____, California, on the date below.

☐ A certificate of mailing is attached.

Date: _____

Clerk, by _____ , Deputy

Name: _____

**This is a Court Order.**

SUM-100

# SUMMONS
## *(CITACION JUDICIAL)*

*FOR COURT USE ONLY*
*(SOLO PARA USO DE LA CORTE)*

**NOTICE TO DEFENDANT:**
***(AVISO AL DEMANDADO):***

SWIFT TRANSPORTATION CO. OF ARIZONA LLC,
a limited liability company; and DOES 1·20, inclusive

**YOU ARE BEING SUED BY PLAINTIFF:**
***(LO ESTÁ DEMANDANDO EL DEMANDANTE):***

BRENDAN NGWA NFORBI

NOTICE! You have been sued. The court may decide against you without your being heard unless you respond within 30 days. Read the information below.

You have 30 CALENDAR DAYS after this summons and legal papers are served on you to file a written response at this court and have a copy served on the plaintiff. A letter or phone call will not protect you. Your written response must be in proper legal form if you want the court to hear your case. There may be a court form that you can use for your response. You can find these court forms and more information at the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), your county law library, or the courthouse nearest you. If you cannot pay the filing fee, ask the court clerk for a fee waiver form. If you do not file your response on time, you may lose the case by default, and your wages, money, and property may be taken without further warning from the court.

There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may want to call an attorney referral service. If you cannot afford an attorney, you may be eligible for free legal services from a nonprofit legal services program. You can locate these nonprofit groups at the California Legal Services Web site (*www.lawhelpcalifornia.org*), the California Courts Online Self-Help Center (*www.courtinfo.ca.gov/selfhelp*), or by contacting your local court or county bar association. **NOTE:** The court has a statutory lien for waived fees and costs on any settlement or arbitration award of $10,000 or more in a civil case. The court's lien must be paid before the court will dismiss the case.
***¡AVISO!*** *Lo han demandado. Si no responde dentro de 30 días, la corte puede decidir en su contra sin escuchar su versión. Lea la información a continuación.*

*Tiene 30 DÍAS DE CALENDARIO después de que le entreguen esta citación y papeles legales para presentar una respuesta por escrito en esta corte y hacer que se entregue una copia al demandante. Una carta o una llamada telefónica no lo protegen. Su respuesta por escrito tiene que estar en formato legal correcto si desea que procesen su caso en la corte. Es posible que haya un formulario que usted pueda usar para su respuesta. Puede encontrar estos formularios de la corte y más información en el Centro de Ayuda de las Cortes de California (www.sucorte.ca.gov), en la biblioteca de leyes de su condado o en la corte que le quede más cerca. Si no puede pagar la cuota de presentación, pida al secretario de la corte que le dé un formulario de exención de pago de cuotas. Si no presenta su respuesta a tiempo, puede perder el caso por incumplimiento y la corte le podrá quitar su sueldo, dinero y bienes sin más advertencia.*

*Hay otros requisitos legales. Es recomendable que llame a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a un servicio de remisión a abogados. Si no puede pagar a un abogado, es posible que cumpla con los requisitos para obtener servicios legales gratuitos de un programa de servicios legales sin fines de lucro. Puede encontrar estos grupos sin fines de lucro en el sitio web de California Legal Services, (www.lawhelpcalifornia.org), en el Centro de Ayuda de las Cortes de California, (www.sucorte.ca.gov) o poniéndose en contacto con la corte o el colegio de abogados locales. AVISO: Por ley, la corte tiene derecho a reclamar las cuotas y los costos exentos por imponer un gravamen sobre cualquier recuperación de $10,000 ó más de valor recibida mediante un acuerdo o una concesión de arbitraje en un caso de derecho civil. Tiene que pagar el gravamen de la corte antes de que la corte pueda desechar el caso.*

The name and address of the court is:
*(El nombre y dirección de la corte es):* Superior Court of California
County of San Joaquin
180 E Weber Avenue, Stockton, CA 95202

CASE NUMBER:
*(Número del Caso):*

The name, address, and telephone number of plaintiff's attorney, or plaintiff without an attorney, is:
*(El nombre, la dirección y el número de teléfono del abogado del demandante, o del demandante que no tiene abogado, es):*
BRENDAN NGWA NFORBI, 1455 Cat Tail Drive, Stockton, CA 95204 (209) 801-4442 bnn.cdl@gmail.com

DATE: *(Fecha)* Clerk, by *(Secretario)* _____ , Deputy *(Adjunto)*

*(For proof of service of this summons, use* Proof of Service of Summons *(form POS-010).)*
*(Para prueba de entrega de esta citatión use el formulario* Proof of Service of Summons, *(POS-010)).*

[SEAL]

**NOTICE TO THE PERSON SERVED:** You are served
1. ☐ as an individual defendant.
2. ☐ as the person sued under the fictitious name of *(specify):*
3. ☐ on behalf of *(specify):*
   under: ☐ CCP 416.10 (corporation) ☐ CCP 416.60 (minor)
   ☐ CCP 416.20 (defunct corporation) ☐ CCP 416.70 (conservatee)
   ☐ CCP 416.40 (association or partnership) ☐ CCP 416.90 (authorized person)
   ☐ other *(specify):*
4. ☐ by personal delivery on *(date)*:



Form Adopted for Mandatory Use
Judicial Council of California
SUM-100 [Rev. July 1, 2009]

**SUMMONS**

Code of Civil Procedure §§ 412.20, 465

**BRENDAN NGWA NFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF SAN JOAQUIN**

| | |
|---|---|
| **BRENDAN NGWA NFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**SWIFT TRANSPORTATION CO. OF ARIZONA LLC, a limited liability company, d/b/a SWIFT TRANSPORTATION; and DOES 1 through 20, inclusive,**<br><br>Defendants. | Case No. _____<br><br>**VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF**<br><br>(1) ICRAA, Civ. Code § 1786.40;<br>(2) CCRAA, Civ. Code § 1785.20.5;<br>(3) UCL, B&P Code § 17200;<br>(4) Penal Code § 290.46(j) (I&B — preliminary NSOPW / registry)<br><br>*[Unlimited Civil]*<br>*[Jury Trial Demanded]* |

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

## I.

## INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), the California Investigative Consumer Reporting Agencies Act, and the Unfair Competition Law. In September 2023, Plaintiff applied to Swift Transportation Co. of Arizona LLC for a Class A Driver position. On September 26, 2023, Swift sent a pre-adverse packet whose National Sex Offender Public Website component remained 'Processing.' On October 5, 2023, Swift sent a post-adverse letter admitting that consumer reports from Asurint, Tenstreet, DriverIQ,

FMCSA-DOT, and Equifax Work Number caused the denial. Plaintiff is informed and believes, and on that basis alleges, that Swift's decision was based in whole or in part on preliminary information from that report citing a sex-offender registry.

2. The September 26, 2023 pre-adverse packet has been decrypted. Plaintiff alleges its contents as known facts. The packet does not state 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The National Criminal search run without a sex-offender component returned Clear / No Reportable Records Found. Federal criminal returned Clear. The county criminal searches that had completed returned Clear. The National Sex Offender Public Website component remained 'Processing' on every snapshot furnished to Plaintiff. The furnished packet contains neither a completed hit nor a completed no-record. Clearinghouse returned Driver Not Prohibited. What the packet does contain — a Class A commercial driver's license, an April 22, 2022 improper-lane moving violation with zero points, PSP inspection history, and a CDLIS license-identity match — is not information disclosed pursuant to Penal Code section 290.46.

3. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A commercial-driver hiring decision is a purpose relating to employment.

4. Federal motor-carrier screening does not swallow this claim. The FMCSA Drug and Alcohol Clearinghouse and the Pre-Employment Screening Program concern drug-and-alcohol violations and crash or inspection history. They are not Penal Code section 290.46 disclosures. An employer that may lawfully obtain ordinary criminal-history or safety records is not thereby authorized to use Megan's Law website information for employment. Penal Code section 290.46(j)(3) says so. This count does not ask the Court to forbid Swift from using the Clearinghouse, PSP, CDLIS, or other federally required or permitted safety databases. It asks

the Court to forbid employment use of information disclosed pursuant to Penal Code section 290.46. Federal motor-carrier regulations do not preempt that narrower claim and do not authorize Megan's Law use.

5. Plaintiff does not allege that the decrypted packet contains a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' He does allege, on information and belief, that Swift used preliminary information from the still-Processing NSOPW component — information citing a sex-offender registry, including information disclosed pursuant to Penal Code section 290.46 or a derivative national compilation whose source was the California registry — in whole or in part in the denial. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally. The vendor adjudication log, interim NSOPW return, and decision-maker communications are exclusively in Defendants' possession. Information disclosed pursuant to Penal Code section 290.46 does not lose that character because a vendor also searched the National Sex Offender Public Website or another public sex-offender compilation. Searching a public website is not a free pass. Subdivision (j)(3)'s reference to publicly available information does not authorize employment use of Megan's Law disclosures. The prohibition is on use of information disclosed pursuant to section 290.46 for purposes relating to employment.

6. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. He does not possess any completed NSOPW result from Swift. The vendor adjudication log, any later NSOPW return, and the decision-maker communications are exclusively in Defendants' possession. He will seek them in discovery.

7. Plaintiff does not name Knight-Swift Transportation Holdings, Inc., or any other parent, merely because it owns affiliated entities. He has sued DOES 1 through 10 for the consumer reporting agency that actually returned registry-derived information and for any Swift

affiliate that was the actual employing or decision-making entity.

8. This Complaint does not plead a Tameny wrongful-termination or failure-to-hire count, an IIED count, a Fair Credit Reporting Act count, a contract or promissory-estoppel count, or a FEHA or Government Code section 12952 Fair Chance Act count. The Fair Chance reservation is not a count. Plaintiff will timely exhaust California Civil Rights Department rights and seek leave to amend if discovery shows Swift considered conviction history before any conditional offer, or used conviction history without the individualized assessment and notices section 12952 requires. The section 290.46(j) count is pleaded on information and belief that Swift used preliminary sex-offender-registry information from the in-process NSOPW component. Civil Code sections 1786.40 and 1786.50, Civil Code section 1785.20.5, and Business and Professions Code section 17200 are independent paths that do not require a completed registry hit. ICRAA and CCRAA are pleaded in the alternative so the claim survives whether the reports were investigative or ordinary consumer reports. Plaintiff does not presently plead Labor Code section 432.7 or section 1198.5. He has not alleged that any report used an arrest that did not result in a conviction, diversion, or a dismissed conviction, and he has not yet served a section 1198.5 inspection request. He preserves leave to amend if the file later supports those reserved theories.

## II.

## PARTIES

9. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwa Nforbi and Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

10. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law

website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

11. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC ('Swift') is a limited liability company that does business as Swift Transportation. Its October 5, 2023 letter lists 2200 South 75th Avenue, Phoenix, Arizona 85043. On September 25, 2023, the FMCSA Clearinghouse identified the querying employer as SWIFT TRANSPORTATION CO OF ARIZONA LLC, USDOT number 54283. On information and belief, Swift is qualified to transact business in California and was the entity that recruited Plaintiff, ordered the reports, and made the employment decision challenged here.

12. On information and belief, Swift's designated agent for service of process in California is National Registered Agents, Inc. Plaintiff will serve Swift through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at a terminal or recruiter's phone number merely because that is how Plaintiff first heard from Swift.

13. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Swift — including, if discovery so shows, Asurint, Tenstreet, LLC, DriverIQ / Cisive, or Equifax Workforce Solutions — and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend when their identities and roles are ascertained.

14. Robin Kaufman and Matt Hutto communicated with Plaintiff as Swift driver recruiters. They are percipient witnesses, not presently named as defendants. Matt Hutto's message used a Class A Recruiting address while stating it was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

## III.

## JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest and costs. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Swift because Swift recruited Plaintiff, a California resident, for work; caused consumer reports to be procured about a California resident; sent the pre-adverse and post-adverse communications to Plaintiff in California; and is, on information and belief, qualified to do business in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, he received the recruiting, screening, and adverse-action communications here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. This Complaint is a California statutory action belonging in this Court.

## IV.

## TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Swift used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision, not on the date of application, and not on the date Plaintiff first registered under section 290.

23. Swift's written post-adverse letter is dated October 5, 2023, at 5:09 a.m. Swift Recruiting emailed that letter the same day. Three years from October 5, 2023, is October 5, 2026. Swift Recruiting emailed a password-protected pre-adverse letter on September 26, 2023. Three years from that earlier date is September 26, 2026. This Complaint is prepared for execution on September 8, 2026, inside both dates.

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. The actual-damages and discretionary enhancement authorized by section 290.46(j)(4)(A) are a liability created by statute under Code of Civil Procedure section 338(a), not an action upon a statute for a penalty. The labeled civil-penalty slice of subdivision (j)(4)(A) is pleaded in the alternative and is not the sole theory. He does not plead a Tameny or personal-injury count. A two-year clock from September 26 or October 5, 2023, would have closed in 2025. He has not pleaded the Fair Credit Reporting Act; the two-year FCRA discovery clock from those same 2023 letters would likewise have closed.

24A. Civil Code section 1786.52 requires that an ICRAA action be brought within two years from the date the plaintiff knew or should have known of the violation. The September 26 and October 5, 2023 letters described consumer reports. They did not advise that an investigative consumer report had been obtained. Plaintiff did not then possess a complete investigative-consumer-report file and did not know the NSOPW component remained Processing until the encrypted attachment was later decrypted. The face of this Complaint does not establish that discovery date. If Defendants interpose section 1786.52, the date is a fact to be proven; it does not appear from the pleading as a complete bar.

24B. The Unfair Competition Law claim is timely under Business and Professions Code section 17208's four-year period. That period is independent of any shorter period that may apply to a borrowed predicate. The UCL count is not pleaded to resurrect a time-barred statutory right. It is pleaded as an independent equitable claim for ongoing standardized screening practices and for restitution of any vested money or property Defendants acquired.

## V.

## COMMON FACTUAL ALLEGATIONS

### A. The Swift Application

25. On Friday, September 22, 2023, at 3:02 p.m., Robin Kaufman, identifying herself as a Swift Transportation Driver Recruiter, emailed Plaintiff that she had received his information and asked him to complete the full application. The message was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC, 120 W. 3rd Street, Tulsa, Oklahoma 74103. Her stated direct line was 623-907-7414 and her address robin_kaufman@swifttrans.com.

26. That same evening, at 10:03 p.m., Matt Hutto, also identifying himself as a Swift

Driver Recruiter, emailed that he was trying to reach Plaintiff at the number Plaintiff had provided, asked him to complete the full driver application, and gave 803-564-3092 as a return number. The message used Mhutto@classarecruitinginc.com and was likewise sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

27. The application was for a Class A Driver position. The file does not contain the completed application, a written offer, a terminal assignment, or a rate of pay.

**B. The September 25, 2023 Screen**

28. On Monday, September 25, 2023, at 11:54 a.m., Tenstreet notified Plaintiff that a DriverIQ employment background document ordered in connection with Swift was available in Driver Pulse.

29. Four minutes later, at 11:58 a.m., the FMCSA Office of Safety Programs emailed Plaintiff that SWIFT TRANSPORTATION CO OF ARIZONA LLC (USDOT# 54283) had requested access to his FMCSA Drug and Alcohol Clearinghouse record. The email warned that refusal would prohibit him from operating a commercial motor vehicle or performing other safety-sensitive functions for Swift.

30. At 1:20 p.m. the same day, Tenstreet notified Plaintiff that his FMCSA Clearinghouse result ordered by Swift Transportation Co. of Arizona LLC was available for review. The decrypted pre-adverse packet includes a Clearinghouse result of Driver Not Prohibited, with no open violations.

31. The Clearinghouse query is alleged as proof that Swift was then treating Plaintiff as a prospective commercial-driver hire and was running federally required safety screens. It is not alleged to be a Penal Code section 290.46 disclosure. Clearinghouse records concern drug and

alcohol program violations, not Megan's Law.

**C. The Pre-Adverse and Post-Adverse Letters**

32. On Tuesday, September 26, 2023, at 3:09 a.m., Swift Recruiting (recruitadmin@swifttrans.com) emailed Plaintiff a message titled 'Swift Transportation - FCRA,' addressed to Brendan Ngehsi Ngwa Nforbi, stating that an important communication was attached as Pre_Adverse_Action_Letter_76326281-1916808-encrypted.pdf and that the password was the last four digits of his Social Security number.

33. The pre-adverse attachment has been decrypted. It is a composite screening packet, not a blank cover letter. It includes completed criminal-file components returning Clear, an NSOPW component that remained Processing on every snapshot, a Clearinghouse result of Driver Not Prohibited, an MVR, PSP inspection history, and CDLIS license-identity information. Plaintiff does not republish identifiers from that packet in this pleading. He alleges the adjudication results as known facts.

34. On Thursday, October 5, 2023, at 3:09 a.m., Swift Recruiting emailed Plaintiff a second 'Swift Transportation - FCRA' message, this time attaching Post_Adverse_Action_Letter_76326281-1916809_em.pdf.

35. The enclosed letter is on Swift Transportation Co. of Arizona LLC letterhead, dated October 5, 2023, 5:09 a.m., and addressed to Brendan Ngehsi Nforbi at 1455 Cat Tail Drive, Stockton, California 95204. It states that offers of employment at Swift are contingent upon successful completion of a background check, and that the letter 'serves as notification that we have decided not to employ you or have decided to take other adverse action based in whole or in part on a consumer report received from a consumer reporting agency.'

36. The letter states that Asurint (Cleveland, Ohio), Tenstreet (Tulsa, Oklahoma), DriverIQ (Tulsa, Oklahoma; disputes at Cisive), FMCSA-DOT, and The Work Number / Equifax Workforce Solutions 'provided us with consumer reports which, in whole or in part, influenced our employment decision.' It states those agencies played no part in the decision other than providing the reports.

37. The October 5 letter says a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. It does not contain a completed NSOPW result, a California Sex Offender Registry source line, or a separate later Asurint, Tenstreet, or DriverIQ printout showing a registry hit. Civil Code sections 1786.10 and 1786.22 entitle Plaintiff to inspect the files those agencies maintain on him. Plaintiff has not yet served those inspection requests. He will.

38. The California disclosure in that packet states that Swift may order a consumer report or investigative consumer report including 'federal criminal history, state criminal history, public court records,' and names the same agencies. Criminal-history and court-record searches are not this claim. This claim is the use of information disclosed pursuant to Penal Code section 290.46.

**D. Facts Supporting the Registry-Use Inference**

39. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

40. Swift is a national motor carrier. On information and belief, it maintains written background-screening policies for driver applicants, contracts with the agencies named in its October 5 letter, and adjudicates hits through a centralized process rather than by ad hoc

decision of a single recruiter.

41. On information and belief, the ordinary Swift driver screen in 2023 included a search, or caused a vendor to search, sex-offender registry or Department of Justice public-notification sources, including sources that republish or are derived from California Penal Code section 290.46 disclosures.

42. Plaintiff does not attach a completed NSOPW result because the packet furnished to him does not contain one. Swift's adjudication log and any later NSOPW return are the documents that will confirm or refute preliminary registry use. They are exclusively in Defendants' possession.

43. The NSOPW component remained Processing on every snapshot furnished to Plaintiff. The furnished packet contains neither a completed hit nor a completed no-record. What happened after those snapshots — including any later completion, interim display, or adjudication use — is a fact of discovery. Plaintiff is informed and believes, and on that basis alleges, that Swift or a DOE obtained, displayed, scored, or was informed of preliminary information from that in-process NSOPW component citing a sex-offender registry — including information disclosed pursuant to Penal Code section 290.46 or a derivative national compilation whose source of record was the California registry — and used that preliminary information in whole or in part in the October 5, 2023 decision.

44. The basis for paragraph 43 is the combination of: Swift ordered an NSOPW sex-offender-website search; that component remained Processing on every snapshot in the packet sent with the pre-adverse notice; Swift then denied employment based in whole or in part on consumer reports; the completed criminal, Clearinghouse, and MVR components that are in the packet do not themselves explain a registry-based denial; Plaintiff was then listed on the California Megan's Law website; the interim NSOPW return, adjudication notes, and

decision-maker communications are exclusively in Defendants' possession; and other employment consumer reports concerning this same Plaintiff that have been produced show a repeating structure — ordinary county, federal, and national criminal-history components returned Clear, No Record, or Eligible, and the only component that returned Consider, Ineligible, Needs Approval, Decisional, or a listed-on-registry result was information disclosed pursuant to Penal Code section 290.46. The completed criminal components in the Swift packet match that ordinary-criminal half of the structure. The unfinished NSOPW component is the remaining half. Plaintiff does not allege that any other employer's report is Swift's report. He states that structure as information supporting his belief about preliminary registry use from the still-Processing NSOPW component.

45. Swift admitted in writing that the denial was based in whole or in part on consumer reports. Civil Code section 1786.40(a) required, if an investigative consumer report had been obtained, that Swift advise Plaintiff that an investigative consumer report had been obtained and supply the name and address of the investigative consumer reporting agency. The October 5 letter stated that consumer reports from named agencies influenced the decision. It named Asurint, Tenstreet, DriverIQ, FMCSA-DOT, and Equifax Work Number and listed cities. It did not advise that an investigative consumer report had been obtained. Plaintiff does not contend that section 1786.40 required Swift to identify the decisive component, to explain the unfinished NSOPW search, or to attach a complete report. Those facts are alleged as circumstantial support for the registry-use inference and as context for the alternative CCRAA count, not as elements of section 1786.40(a). Cessation of hiring after those reports is the adverse action. The ICRAA and CCRAA counts can reach discovery even if the preliminary-registry-use inference later fails.

46. Alternative explanations — a failed Clearinghouse or drug-and-alcohol result, a driving-record or crash disqualification, a lawful criminal-history adjudication under a statute that actually authorizes the use, a CDL defect, or a withdrawal of the application — can be

tested against a discrete set of records. Plaintiff will seek the application file, the Asurint, Tenstreet, and DriverIQ reports, the Clearinghouse and PSP results, adjudication notes, and communications of the decision-maker.

47. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a completed national sex-offender search returning no record. This packet is not that report. The NSOPW component remained Processing on every snapshot furnished to Plaintiff. A demurrer may take the printed snapshots as what Plaintiff has pleaded them to be. It cannot convert those incomplete snapshots into Lerma's completed no-record search, and it cannot decide — without the adjudication log — whether Swift used preliminary registry information from that in-process component. Defendants may not obtain a pleading-stage dismissal by withholding the interim NSOPW return and the decision-maker file. If production shows a completed NSOPW returning no record and no preliminary registry use, the Penal Code count will stand or fall on that file — after production, not by assuming it now.

48. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general commercial-driver assignment is not, without more, the narrow authorization that subdivision (j)(1) describes. FMCSA authorization to query the Clearinghouse or PSP is not authorization to use Megan's Law website information. Swift has the burden of proving any other statutory authorization as a defense.

**E. Knowledge, Concealment, and Harm**

49. Swift knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Swift is a sophisticated interstate carrier with dedicated compliance and screening functions. On information and belief, its

vendor contracts and adjudication guides address or should address California registry restrictions.

50. On information and belief, Swift did not identify the registry, or any other specific ground, as the basis for the decision. The October 5 letter names agencies, not hits. That omission deprived Plaintiff of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

51. As a result of the decision, Plaintiff lost the Class A Driver opportunity, including the wages and benefits of that position, according to proof and subject to mitigation. He also suffered emotional distress, humiliation, and anxiety from an unexplained denial he is informed and believes rested on a status the Legislature has forbidden employers to use. Wages earned, if any, will be proven.

52. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an unaccepted driver application. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

## VI.

## FIRST CAUSE OF ACTION

**California Investigative Consumer Reporting Agencies Act**
**Civil Code sections 1786.40 and 1786.50 — Against Swift and User DOES**
**(Pleaded in the Alternative to CCRAA)**

59. Plaintiff realleges paragraphs 1 through 52 and 56 through 57 to the extent consistent with this cause.

60. On information and belief, one or more of the agencies Swift named assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Swift's request, and Swift was the user of that information before the October 5, 2023 decision. Civil Code section 1786.2 defines an investigative consumer report as one in which information on those subjects is obtained. Plaintiff alleges the products concerned those subjects. He does not invent personal interviews. If this Court concludes that interviews are required and none occurred, this ICRAA count does not apply and the CCRAA count does.

61. Civil Code section 1786.40(a) required Swift, under circumstances in which employment was denied and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address. Swift's October 5 letter names agencies and cities and states that consumer reports influenced the decision. It does not advise that an investigative consumer report had been obtained. That is the notice failure alleged. Plaintiff does not allege that section 1786.40 independently required Swift to identify the decisive component, to complete the NSOPW search, or to attach every unfinished printout.

62. The omission caused incremental harm distinct from the denial itself. Plaintiff could not timely inspect the investigative file, learn whether an investigative report rather than an ordinary consumer report had been obtained, or invoke Civil Code sections 1786.10 and 1786.22 before the decision became final. He has not yet served those inspection requests. He will. Those records, together with the adjudication log, will confirm whether an investigative report was obtained.

63. This ICRAA count does not depend on proving Penal Code section 290.46(j). A notice failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was obtained and employment was denied without the required advice. If

Defendants establish that the reports were ordinary consumer reports and not investigative, this count does not apply and the CCRAA count does.

64. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof of gross negligence or willfulness.

65. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3). He reserves amendment if production shows a timely FCRA claim and a notice or copy defect that the 2023 letters did not cure. He also reserves amendment under Civil Code section 1786.16 if production shows Swift procured an investigative report before the required standalone disclosure and written authorization. The California disclosure in the packet recites that Swift may order a consumer report or investigative consumer report. Plaintiff does not presently allege nonauthorization as an established fact.

## VII.

## SECOND CAUSE OF ACTION

**California Consumer Credit Reporting Agencies Act**
**Civil Code sections 1785.20.5 and 1785.31 — Against Swift and User DOES**
**(Pleaded in the Alternative to ICRAA)**

65A. Plaintiff realleges paragraphs 1 through 52 and 59 through 65 to the extent consistent with this cause.

65B. In the alternative, if the reports Swift obtained were ordinary consumer credit reports rather than investigative consumer reports, the California Consumer Credit Reporting

Agencies Act applies. Civil Code section 1785.20.5 required Swift, before procuring a consumer credit report for employment purposes, to provide written notice that a report would be used, and, before taking adverse action based in whole or in part on the report, to provide a copy of the report and a notice of rights.

65C. Swift's October 5 letter stated that a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. On information and belief, any later-completed component used in the October 5 decision — including any completed NSOPW or other agency report that was not in that packet — was not provided to Plaintiff before the adverse action. Plaintiff does not invent the contents of any unproduced later report.

65D. The October 5 denial was based in whole or in part on consumer reports, as Swift admitted. If those reports were consumer credit reports, the failure to furnish a complete copy of every report actually used, before the decision, violated section 1785.20.5. If they were investigative, this count does not apply and the ICRAA count does.

65E. Under Civil Code section 1785.31, Plaintiff seeks actual damages, costs, attorney's fees if later represented, and punitive damages upon proof of willfulness, according to proof.

## VIII.

## THIRD CAUSE OF ACTION

**Unlawful and Unfair Business Practices**

**Business and Professions Code section 17200 — Against All Defendants**

66. Plaintiff realleges paragraphs 1 through 65E to the extent consistent with this equitable cause.

67. Defendants engaged in unlawful practices by violating, to the extent proven, Civil Code section 1786.40, Civil Code section 1785.20.5, and Penal Code section 290.46(j)(2)(E). They engaged in unfair practices because the gravity of the harm — denial of employment on a criterion the Legislature has forbidden, or on consumer reports without the advice the statute required — outweighs any utility of taking adverse action while a sex-offender-website component remained Processing and while a complete copy of every report actually used was withheld.

68. Plaintiff suffered injury in fact and lost money or property through the lost Swift employment opportunity, reliance expenditures, employment-search costs, and other economic losses to be proven. Injury in fact sufficient for UCL standing is not the same as recoverable restitution. He does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired through the challenged practices — including, according to proof, reliance expenditures and employment-search costs. He does not seek restitution of an abstract value of personal information. He does not allege that Swift holds a fund of unearned future wages.

69. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data. On information and belief, Swift continues to use the same or similar standardized screening procedures for California driver applicants. That continuing practice, not a single past denial, is the basis for UCL injunctive relief and for declaratory relief under Code of Civil Procedure section 1060. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information in California recruiting; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data, together with restitution of vested money or property actually acquired, under Business and Professions Code section 17203.

## IX.

## FOURTH CAUSE OF ACTION

**Unauthorized Employment Use of Registry Information**

**Penal Code section 290.46(j) — Against All Defendants**

**(Pleaded on Information and Belief — Preliminary NSOPW / Registry Use)**

53. Plaintiff realleges paragraphs 1 through 52, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

54. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law. Section 290.46(j)(2)(E) prohibits use of that information for purposes relating to employment unless another law authorizes the use.

55. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000). The $25,000 figure is a cap on the civil penalty, not a substitute floor that displaces actual damages. Plaintiff seeks the civil remedies the statute authorizes for unauthorized employment use of information disclosed pursuant to section 290.46, whether this Court locates those remedies in subdivision (j)(4)(A) or in another subdivision of section 290.46. He does not rest this cause on a criminal-enhancement theory.

56. On information and belief, Swift used preliminary information from the still-Processing NSOPW component citing a sex-offender registry — including information disclosed pursuant to section 290.46 concerning Plaintiff — in whole or in part in the

employment decision. The user is the employer that takes the information into account in making the employment decision, not a consumer reporting agency that merely retrieves, scores, or republishes it. Plaintiff does not sue Asurint, Tenstreet, DriverIQ, or Equifax for mere furnishing. This count is directed at Swift's use. Plaintiff does not allege that the printed snapshots contain a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The use alleged is the use of preliminary registry information from that in-process component.

57. The use related directly to employment: it concerned the Swift Class A Driver application and the October 5, 2023 decision not to employ Plaintiff. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that application. Defendants knew or should have known that employment use was prohibited. The use was a substantial factor in the decision and caused the loss and injury alleged.

58. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A), or by whichever subdivision this Court holds supplies the civil remedy for unauthorized employment use. He does not presently allege a multi-incident pattern or practice at Swift sufficient for subdivision (j)(4)(B) preventive relief. He seeks that remedy only if discovery shows reasonable cause to believe such a pattern or practice. The damages claim under subdivision (j)(4)(A) does not depend on pattern or practice. Civil Code section 3294 punitive damages, if any, are pleaded in the alternative to the statute's exemplary damages or civil penalty for the same conduct. Plaintiff will elect. He does not seek double punitive recovery.

58A. On information and belief, Swift's human-resources and centralized driver-adjudication personnel are managing agents within the meaning of Civil Code section 3294(b): they exercise substantial discretionary authority over hiring and screening policy, not merely the power to accept or reject a single applicant. Those managing agents established, implemented, and ratified the standardized screening practices alleged. Plaintiff seeks section

3294 punitive damages only upon proof of oppression, fraud, or malice and of managing-agent authorization, ratification, or personal participation. ICRAA punitive damages, if any, rest on Civil Code section 1786.50 and do not depend on section 3294.

## X.

## PRESERVATION OF EVIDENCE

70. Defendants are on notice to preserve Plaintiff's complete Swift and Tenstreet application file; recruiter communications of Kaufman and Hutto; the Asurint, Tenstreet, DriverIQ, Clearinghouse, PSP, and Equifax / Work Number orders, reports, component searches, adjudication, access, and cancellation logs; the decrypted September 26, 2023 pre-adverse packet; and policies governing Megan's Law, FCRA, ICRAA, and driver adjudication in 2023.

71. Relevant electronically stored information includes applicant-tracking and Driver Pulse audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from September 1, 2023 through December 31, 2023, and any later date on which the employment decision was recorded or revisited.

72. Swift's own application file, vendor reports, and NSOPW adjudication log are the documents that will confirm or refute registry use.

## XI.

## PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double

recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For CCRAA actual damages and punitive damages upon the showing required by Civil Code section 1785.31, if that alternative count is proven;

5. For punitive damages under Civil Code section 3294 against only those Defendants for whom the statutory prerequisites are proven, pleaded in the alternative to any exemplary damages or civil penalty awarded under Penal Code section 290.46 for the same conduct, with no double recovery and no amount pleaded;

6. For restitution under Business and Professions Code section 17203 of vested money or property Defendants acquired, not unearned future wages;

7. For injunctive relief under Business and Professions Code section 17203, and for Penal Code section 290.46(j)(4)(B) preventive relief only if discovery shows reasonable cause to believe a pattern or practice;

8. For declaratory relief under Code of Civil Procedure section 1060 concerning whether Defendants' standardized California screening practices may use information disclosed pursuant to Penal Code section 290.46 for employment;

9. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

10. For prejudgment and post-judgment interest as allowed by law; and

11. For such other relief as the Court deems just and proper.

## XII.

## DEMAND FOR JURY TRIAL

73. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

## VERIFICATION

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Signed on September 8, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI